

**BEFORE THE  
FEDERAL MARITIME COMMISSION**



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**AENEAS EXPORTING LLC,**

**Claimant,**

**v.**

**Docket No. 20-11**

**CARLO SHIPPING INTERNATIONAL INC.,**

**Respondent.**

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**VERIFIED COMPLAINT**

1. Claimant Aeneas Exporting LLC (“Aeneas Exporting”), by an through its undersigned attorneys, brings this Verified Complaint against Respondent Carlo Shipping International, Inc. (“Respondent”) pursuant to violations of 46 U.S.C. §§ 41102 and 41104 and pursuant to the Federal Maritime Commission’s (“FMC”) authority to permit the filing of complaints under Section 11(a) of the Shipping Act, 46 U.S.C. § 41301(a), in response to Respondent’s violations of the Shipping Act.

2. Aeneas Exporting alleges upon information and belief the following:

**PARTIES AND OTHER ENTITIES**

3. Aeneas Exporting is an Indiana limited-liability company that exports vehicles from the United States to foreign countries including Libya. Aeneas Exporting’s primary place of business is located at 2511 E. 2nd Street, Apt. 16, Bloomington, IN 47401.

4. Claimant is and at all relevant times has been a cargo owner as that term is defined in 46 U.S.C. § 40102(22).

5. Respondent a United States corporation formed and existing under the laws of the state of New Jersey. Respondent's primary place of business is located at 811 Bond Street, Elizabeth, NJ 07201. Respondent's email address is carlos@csil.us.

6. Respondent is a non-vessel-operating common carrier ("NVOCC") and freight forwarder ("FF") as those terms are defined at 46 U.S.C. § 40102(17), providing freight-forwarding, logistics, and related shipping services to customers in the United States. Respondent is licensed by FMC as an NVOCC and FF under license number 022606 pursuant to 46 C.F.R. Part 515 of FMC's Regulations.

### **JURISDICTION**

7. FMC has subject-matter jurisdiction over this action pursuant to the Shipping Act of 1984, 46 U.S.C. § 40101, *et seq.*

8. FMC has personal jurisdiction over Respondent as an ocean common carrier, non-vessel-operating common carrier, ocean freight forwarder, and ocean transportation intermediary, as those terms are defined in 46 U.S.C. § 40102.

### **MEMORANDUM OF FACTS**

9. Beginning on or about November 11, 2019, Aeneas Exporting hired Respondent to ship 40-foot containers of vehicles from Respondent's warehouse in New Jersey to Benghazi, Libya. The parties signed a shipping application form to memorialize their arrangement. (*See* shipping application form, attached as **Exhibit A**). Respondent's per-container rate for shipping was set at \$2,550.00. (*See, e.g.*, November 22, 2019 invoice, attached as **Exhibit B**). Between November 2019 and February 2020, Aeneas Exporting used Respondent's services to ship approximately 101 containers to Libya, at a total cost of approximately \$239,550.00.

10. On or about February 4, 2020, Respondent, through its owner Carlos Feliu, sent a text message increasing Respondent's shipping rate to \$2,750.00, including for vehicles that

Aeneas Exporting had already delivered to Respondent's warehouse for shipment. (See February 4, 2020 text message, attached as **Exhibit C**). On February 20, 2020, Aeneas Exporting wired a \$25,000 payment to Respondent for containers that had been delivered to port in Benghazi, Libya. (See 2/20/20 wire receipt, attached as **Exhibit D**). That same day, Respondent demanded an additional \$75,000 payment for containers that had been shipped but had not yet arrived at their destination in Libya, threatening to hold all of Aeneas Exporting's containers if such payment was not sent immediately. (See 2/20/20 email, attached as **Exhibit E**). This demand and rate increase were in direct violation of the parties' shipping application form.

11. Between February 21 and February 28, 2020, Aeneas Shipping wired Respondent \$50,000.00 in three separate transactions for shipment of 17 containers. (See wire 2/21/20, 2/26/20, and 2/28/20 wire receipts, attached as **Exhibit F**). On February 27, 2020, Respondent's accountant, Ms. Marcela Huergo, represented that the \$50,000.00 would be applied to Aeneas Exporting's account. (See 2/27/20 email, attached as **Exhibit G**). However, Respondent only applied approximately \$10,200.00 of this payment to existing charges for services rendered and retained the remainder, approximately \$39,800, as a guarantee against future services. Moreover, Respondent did in fact hold Aeneas Exporting's containers in Libya, accruing storage, detention, and demurrage fees in the amount of \$4,000. As a result of Respondent's unauthorized actions, Aeneas Exporting stopped sending new vehicles to Respondent and began to ship them with another company.

12. On March 5 and March 9, 2020, Respondent sent emails inquiring about Aeneas Exporting's decision not to send new vehicles to Respondent for shipping. (See March 5 and March 9, 2020 emails, attached as **Exhibit H**). On or about March 10, 2020, Mr. Feliu, on behalf of Respondent, sent a text message demanding that Aeneas Exporting continue doing business with

Respondent, mistakenly claiming that Aeneas Exporting still owed Respondent \$115,000.00 in outstanding invoices, and threatening to charge daily storage fees on all of Aeneas Exporting's vehicles then in Respondent's possession. (See 3/10/20 text messages, attached as **Exhibit I**).

13. On March 19, 2020, Aeneas Exporting wired an additional \$5,800.00 to Respondent for shipment of two additional containers and for fees associated with changing several vehicle titles from New York to New Jersey titles. (See 3/11/20 wire transfers, attached as **Exhibit J**).

14. Hoping to secure the release of its containers being held by Respondent in both New Jersey and Libya, Aeneas Exporting paid Respondent an additional \$121,000.00 for shipment and releases between March and May 2020. (See 3/19/2020, 4/15/2020, 5/4/2020 wire receipts, attached hereto as **Exhibit K**). This brought the total amount of wire payments made to Respondent to \$165,900. However, Respondent released only 45 of Aeneas Exporting's 69 containers at a cost of \$120,750.00. Respondent kept the \$45,150 difference without explanation and has held the 24 remaining containers, which continue to incur storage fees in Libya. (See, e.g., March 2020 storage invoices, attached as **Exhibit L**).

15. Aeneas Exporting has repeatedly demanded that Respondent apply this \$45,150 and release the remaining 24 containers, but Respondent denies that it has withheld any payments made by Aeneas Exporting.

16. The identification numbers of the containers Respondent is wrongfully withholding are:

- 1) 62696819 - HLBU28882047 - Hapag-Lloyd;
- 2) 65030042 - HLXU6562558 - Hapag-Lloyd;
- 3) 65030042 - HLXU8267211 - Hapag-Lloyd;
- 4) 65030042 - TGBU5749403 - Hapag-Lloyd;
- 5) 65030042 - TGHU8999223 - Hapag-Lloyd;
- 6) 65030042 - HLXU8239539 - Hapag-Lloyd;

7) 65030042 - UACU5804441 - Hapag-Lloyd;  
8) 65030042 - TCNU1758270 - Hapag-Lloyd;  
9) 65030042 - DFSU7104778 - Hapag-Lloyd;  
10) 66031689 - HLBU2878772 - Hapag-Lloyd;  
11) 66031689 - TGHU6210892 - Hapag-Lloyd;  
12) 61362035 - HLBU2156321 - Hapag-Lloyd;  
13) 61362035 - HLBU2460648 - Hapag-Lloyd;  
14) 66031689 - FSCU7169603 - Hapag-Lloyd;  
15) 67031692 - BMOU6608915 - Hapag-Lloyd;  
16) 67031692 - HLXU8298465 - Hapag-Lloyd;  
17) 66031689 - HLBU1714075 - Hapag-Lloyd;  
18) 66031689 - TRLU7499753 - Hapag-Lloyd;  
19) 66031689 - HLBU2908917 - Hapag-Lloyd;  
20) 66696049 - GLDU7477260 - Hapag-Lloyd;  
21) 66696049 - FCIU8526970 - Hapag-Lloyd;  
22) NAM3882852 - TRLU7121803 - CMA CGM;  
23) NAM3885165 - CMAU5874261 - CMA CGM;  
24) NAM3882372 - CAIU9321678 - CMA CGM.

17. Beginning on about May 12, 2020, Respondent insisted that Aeneas Exporting has an outstanding balance of \$69,166.73, ignoring the \$45,150 that it has misappropriated from Aeneas Exporting's prior payments. Respondent has refused to account for this \$45,150, to apply it to the outstanding balance it claims Aeneas Exporting owes, or to provide documentation substantiating Aeneas Exporting's supposed balance. Respondent has also continued to hold the 24 containers belonging to Aeneas Exporting which are incurring storage and demurrage charges and which cannot be delivered to Aeneas Exporting's customers. This delay is irreparably damaging Aeneas Exporting's business, its reputation, and its client relationships.

### **CAUSES OF ACTION**

#### **COUNT I: VIOLATION OF 46 U.S.C.A. § 41102(c)**

18. Aeneas Exporting incorporates by reference each of the facts and allegations stated in paragraphs 1 through 15 set forth herein.

19. 46 U.S.C. § 41102(c) prohibits a common carrier or ocean transportation intermediary from failing to “establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.”

20. Between February 11, 2020 and the present, Respondent has failed to establish, observe, or enforce just and reasonable regulations and practices relating to its receipt, handling, storing, and delivery of Aeneas Exporting’s property. Respondent has failed or refused to apply Aeneas Exporting’s payments appropriately, has inexplicably overcharged Aeneas Exporting for services rendered, has failed to provide an accounting of Aeneas Exporting’s balance, and has wrongfully detained and withheld Aeneas Exporting’s containers both in New Jersey and in Libya. As a result of Respondent’s actions, Aeneas Exporting has been forced to pay excess charges, incur storage and demurrage fees, and has suffered harm to its business and reputation.

21. Because of Respondent’s wrongful and unjust actions, Aeneas Exporting has suffered damages in the amount of \$45,150 plus costs and penalties associated with Respondent’s retention of Aeneas Exporting’s containers. Aeneas Exporting has also suffered damages to its business in an amount to be established at hearing.

## **COUNT II: VIOLATION OF 46 U.S.C.A. § 41104(a)(3)**

22. Aeneas Exporting incorporates by reference each of the facts and allegations stated in paragraphs 1 through 19 set forth herein.

23. 46 U.S.C. § 41104(a)(3) prohibits a common carrier from “retaliate[ing] against a shipper by refusing, or threatening to refuse, cargo space accommodations when available” and from “resort[ing] to other unfair or unjustly discriminatory methods because the shipper has patronized another carrier, or has filed a complaint, or for any other reason.”

24. Between March 2, 2020 and the present, Respondent has taken retaliatory steps against Aeneas Exporting in response to Aeneas Exporting's decision to ship its containers with another company. Specifically, Respondent has purposefully, in retaliation for the loss of Aeneas Exporting's business, overcharged Aeneas Exporting, failed or refused to provide an accounting of Aeneas Exporting's supposed balance, refused to apply payments made by Aeneas Exporting to its outstanding balance and wrongfully withheld such payments, and refused to release Aeneas Exporting's containers, both in New Jersey and in Libya. As a result of these repeated violations of 46 U.S.C. § 41104(a)(3), Aeneas Exporting has sustained and continues to sustain financial and reputational harm in the United States and in Libya.

25. Respondent also knowingly and improperly as a result of these repeated violations have caused and will cause Aeneas Exporting to sustain financial harm by the application of storage and demurrage charges for its containers being wrongfully withheld in Libya.

### **DAMAGES**

26. Aeneas Exporting has been actually and materially injured by Respondent for financial damages of at least \$49,150.00 as a direct result of Respondent's repeated violations of 46 U.S.C. § 41102(c) and 46 U.S.C. § 41104(a)(3). Specifically, Aeneas Exporting has suffered damages and continues to suffer damages in excess of \$49,150.00 as a direct result of Respondent's repeated violations.

### **PRAYER FOR RELIEF**

**WHEREFORE**, Aeneas Exporting respectfully prays for relief from the Commission as follows:

1. An Order compelling Respondent to answer the charges made herein and scheduling a hearing in Chicago, Illinois during which the Commission may receive evidence in this matter;

2. An Order, after due investigation and hearing, finding that Respondent has violated 46 U.S.C. § 41104(a)(3);
3. An Order compelling Respondent to cease and desist its wrongful, discriminatory, unjust, and retaliatory activities against Aeneas Exporting;
4. An Order compelling Respondent to release any and all property or containers belonging to Aeneas Exporting in New Jersey or in Libya;
5. An Order awarding Aeneas Exporting damages in an amount in excess of \$62,700.00 to be proved under 46 U.S.C. § 41305, interest under 46 U.S.C. § 41305(a), and reasonable attorney's fees under 46 U.S.C. § 41305(e); and
6. Such other and further relief as the Commission determines to be just and proper.

Dated: June 15, 2020

**BENESCH, FRIEDLANDER,  
COPLAN & ARONOFF LLP**

By: /s/ Trevor J. Illes

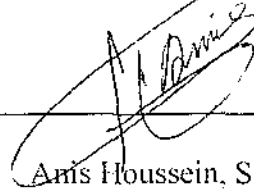
Trevor J. Illes  
tilles@beneschlaw.com  
71 S. Wacker Dr., Ste. 1600  
Chicago, Illinois 60606  
Telephone: (312) 212-4949

*Counsel for Claimant Aeneas Exporting LLC*



## VERIFICATION

Mr. Anis Houssein, Shipping Manager of Aeneas Exporting LLC, pursuant to 28 USC § 1746, hereby declares under penalty of perjury that he has read the foregoing Verified Complaint and that the facts stated therein to the best of his knowledge, information, and belief further declares that the foregoing is true and correct on information, belief, and upon information received from others.

A handwritten signature in black ink, appearing to read 'Anis Houssein', is written over a horizontal line.

Anis Houssein, Shipping Manager  
Aeneas Exporting LLC  
2511 2nd St., Apt. 16  
Bloomington, IN 47401  
anis.houssein@gmail.com

# Exhibit “A”



435 DIVISION STREET - ELIZABETH – NJ – 07201

TEL: 908-351-5488 / FAX: 908-351-5499

### RESERVATION AND SHIPPING APPLICATION FORM:

*\*Please complete, SIGN and fax or email this shipper application form to CSI Logistics for processing:*

#### Shipper information:

DATE: M \_\_\_\_\_ D \_\_\_\_\_ Y \_\_\_\_\_ PORT OF LOADING: Bayonne PORT OF DESTINATION: Benghazi Libya  
 CARGO IN TRANSIT TO. IF YES SPECIFY: \_\_\_\_\_  
 SHIPPER'S COMPANY NAME: Aeneas Exporting LLC  
 SHIPPER'S FIRST NAME: Anis SHIPPER'S LAST NAME: Houssein  
 ADDRESS (VALID USA ADDRESS ONLY): \_\_\_\_\_  
 CITY: Bloomington STATE: Indiana  
 COUNTRY: USA ZIP: 47401  
 PHONE: 773 814 8912 FAX: (\_\_\_\_\_) \_\_\_\_\_  
 E-MAIL: anis.houssein@gmail.com CHOOSE ONE: PASSPORT/ TAX I.D. / SS# TID 0167412299 (9 DIGITS)  
 CARGO DATA: PLEASE CIRCLE ONE: CONTAINER SHIPMENT 40' 40'HC 20' (OR) Ro / Ro SERVICE

| YEAR | MANUFACTURER | MODEL | VIN NUMBER | VALUE |
|------|--------------|-------|------------|-------|
|      |              |       |            |       |
|      |              |       |            |       |
|      |              |       |            |       |
|      |              |       |            |       |

PERSONAL EFFECTS: YES \_\_\_\_\_ NO \_\_\_\_\_ HOW MANY ITEMS? 100 monthly

PLEASE NOTE **CARGO IS NOT INSURED** unless you have marine insurance. Please indicate if you want to purchase MARINE INSURANCE  
 TOTAL LOSS MARINE INSURANCE: YES \_\_\_\_\_ NO ☒ AMOUNT OF COVERAGE REQUESTED: \$ \_\_\_\_\_

#### Consignee Information: (We do not accept PO Box)

NAME: Aireda Co. For Importing Vehicles and Auto Parts  
 ADDRESS: 219 Jamal Abd Elnasser  
 CITY: Benghazi Libya COUNTRY: \_\_\_\_\_  
 PHONE CODE: \_\_\_\_\_ CITY CODE: \_\_\_\_\_ TEL NO: +218925328768  
 FAX CODE: \_\_\_\_\_ CITY CODE: \_\_\_\_\_ TEL NO: \_\_\_\_\_  
 E-MAIL: saadalgazali@gmail.com  
 INTENDED DATE OF SAILING: 11.11.19 / \_\_\_\_\_ / \_\_\_\_\_ PREFERRED SHIPPING LINE: \_\_\_\_\_

**TERMS AND CONDITIONS:** Payment of the ocean freight charges, warehouse charges, and inland transportation must be paid upon the time of booking request. If the same is not received 5 business days prior to the sailing of the cargo, the same will be kept on hold at the port of loading. Whichever storage/demurrage charges accrued because of these actions, will be billed to the account of the shipper. If the cargo sailed and the ocean freight has not been paid for 5 days prior to the

arrival of the same at the port of final destination, CSI Logistics, will have the right to charge \$150.00 Fee for RORO cargo and \$250.00 for containerized cargo and /or exercise its lien rights and have the cargo sold. If there are any funds remaining after the freight payment has been satisfied, they will be returned to the shipper. The carrier, forwarder or its agents are not responsible for any personal effects/loose cargo delivered to and/or shipped via CSI Logistics Inc. RoRo service & vehicles must be in good drivable condition. Ocean freight rates, sailings and vessels are subject to change. POWER OF ATTORNEY: That, I undersigned, the shipper of the above described commodity(ies), do hereby make, constitute and appoint CSI Logistics Inc., it's employees and agents my true and law full attorney to accomplish and finish the necessary and required papers in connection with the shipment of the above described commodity(ies). Agreed, accepted and signed by the shipper:

SIGNATURE: Anis Houssein

CSIL AGENT: \_\_\_\_\_

# Exhibit “B”



# Carlo Shipping International Inc.

INTERNATIONAL FREIGHT FORWARDERS  
FMC No. 022606  
435 Division Street Elizabeth, NJ 07201  
Tel: (908) 351-5488 Fax: (908) 351-5499

|              |
|--------------|
| DATE         |
| 11/22/2019   |
| INVOICE NO.  |
| CSI-19-00996 |

## INVOICE

|                                                                                                                                                                                                        |            |                          |                       |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|--------------------------|-----------------------|
| <b>BILL TO</b>                                                                                                                                                                                         |            | <b>ENTRY NO.</b>         |                       |
| AENEAS EXPORTING LLC<br>2511 EAST SECOND ST APT. 16<br>BLOOMINGTON<br>IN, 47401                                                                                                                        |            | NAM3711532               |                       |
| <b>MARKS AND NUMBERS</b>                                                                                                                                                                               |            | <b>YOUR REF. NO.</b>     | <b>OUR REF. NO.</b>   |
| 1X 2009 Hyundai Accent VIN: KMHCN46C29U362940<br>1X 2011 Hyundai Sonata VIN: 5NPEB4AC8BH166403<br>1X 2012 Hyundai Genesis VIN: KMHGC4DDXCU186052<br>1X 2001 Jeep Grand Cherokee VIN: 1J4GW48S41C724777 |            | WBINS5772837             | CSI-19-00996          |
|                                                                                                                                                                                                        |            | <b>CARRIER</b>           | <b>SAILED/ARRIVED</b> |
|                                                                                                                                                                                                        |            | BREMEN EXPRESS OMR46E1MA | 11/26/0219            |
|                                                                                                                                                                                                        |            | <b>PORT</b>              | <b>B/L NO.</b>        |
|                                                                                                                                                                                                        |            | NYP/BEN                  |                       |
| <b>DESCRIPTION</b>                                                                                                                                                                                     |            | <b>AMOUNT</b>            |                       |
| Freight charges - ocean / air                                                                                                                                                                          |            | \$2550.00                |                       |
|                                                                                                                                                                                                        |            |                          |                       |
|                                                                                                                                                                                                        |            | <b>TOTAL</b>             | <b>\$2550.00</b>      |
| <b>TYPE</b>                                                                                                                                                                                            | <b>NUM</b> | <b>DATE</b>              | <b>AMOUNT</b>         |
| <b>PAYMENTS / CREDITS</b>                                                                                                                                                                              |            |                          | <b>\$ 0</b>           |
| <b>BALANCE DUE</b>                                                                                                                                                                                     |            |                          | <b>\$ 2550</b>        |

***Thank you for using our services***

PAYABLE UPON PRESENTATION

EXCEPT FOR CUSTOMS ENTRIES AND DUTIES, WE ARE INDEPENDENT CONTRACTORS. THE SUBMISSION OF INCOMPLETE OR INACCURATE INFORMATION RELATED TO AN IMPORT ENTRY (INCLUDING DESCRIPTIONS, QUANTITIES, WEIGHTS, PURCHASE PRICES, DISCOUNTS, COMMISSIONS, CHANGED SELLING PRICES AT THE TIME OF EXPORTATION, ASSISTS, COUNTRY OF ORIGIN, ETC.) MAKES YOU LIABLE TO SEVERE GOVERNMENTAL PENALTIES AND SANCTIONS, IN THE EVENT THE INFORMATION FORWARDED TO US, OR WHICH ACCOMPANIED SHIPMENT, DOES NOT ACCURATELY REFLECT THE ENTIRE TRANSACTION. IT IS ESSENTIAL THAT YOU IMMEDIATELY NOTIFY US SO THAT WE CAN TAKE CORECTIVE ACTION.

IMPORTER MUST FURNISH MISSING DOCUMENTS WITHIN THE PERIOD OF TIME AS REQUIRED BY CUSTOMS REGULATIONS TO AVOID CUSTOMS PENALTIES.

**IMPORTANT: SEE TERMS AND CONDITONS OF SERVICE ON REVERSE SIDE.**

If you are the importer of record, payment to the broker will not relieve you of liability for Customs charges (duties, taxes or other debts owed Customs) in the event the charges are not paid by the broker. Therefore, if you pay by check, Customs charges may be paid with a separate check payable to "U.S. Customs Service" which shall be delivered to Customs by the broker.

## Terms and Conditions of Service

### 1. Definitions.

(a) "Company" shall mean Carlo Shipping International, its subsidiaries, related companies, agents and/or representatives;  
(b) "Customer" shall mean the person for which the Company is rendering service, as well as its agents and/or representatives, including, but not limited to, shippers, importers, exporters, carriers, secured parties, warehousemen, buyers and/or sellers, shipper's agents, insurers and underwriters, break-bulk agents, consignees, etc. It is the responsibility of the Customer to provide notice and copy(s) of these terms and conditions of service to all such agents or representatives;  
(c) "Documentation" shall mean all information received directly or indirectly from Customer, whether in paper or electronic form,  
(d) "Ocean Transportation Intermediaries" ("OTI") shall include an "ocean freight forwarder" and a "non-vessel operating carrier".  
(e) "Third parties" shall include, but not be limited to, the following: "carriers, truckmen, cartmen, lightermen, forwarders, OTIs, customs brokers, agents, warehousemen and others to which the goods are entrusted for transportation, cartage, handling and/or delivery and/or storage or otherwise".

**2. Company as agent.** The Company acts as the "agent" of the Customer for the purpose of performing duties in connection with the entry and release of goods, post entry services, the securing of export license the filing of export and security documentation on behalf of the Customer and other dealings with Government Agencies as to all other services. Company acts as an independent contractor.

**3. Limitation of Actions.** (a) Unless subject to a specific statute or international convention, all claims against the Company for a potential or actual loss, must be made in writing and received by the Company, within SEVEN days of the event giving rise to claim; the failure to give the Company timely notice shall be a complete defense to any suit or action commenced by Customer. (b) All suits against Company must be filed and properly served on Company as follows: (i) For claims arising out of ocean transportation, within ONE year from the date of the loss; (ii) For claims arising out of the preparation and/or submission of an import entry(s), within NINETY days from the date of liquidation of the entry(s); (iii) For claims arising out of the preparation and/or submission of an import entry(s), within NINETY days from the date of liquidation of the entry(s); (iv) For any and all other claims of any other type, within ONE year from the date of the loss or damage.

**4. No Liability For The Selection or Services of Third Parties and/or Routes.** Unless services are performed by persons or firms engaged pursuant to express written instructions from the Customer, Company shall use reasonable care in its selection of third parties, or in selecting the means, route and procedure to be followed in the handling, transportation, clearance and delivery of the shipment; advice by the Company that a particular person or firm has been selected to render services with respect to the goods, shall not be construed to mean that the Company warrants or represents that such person or firm will render such services nor does Company assume responsibility or liability for any actions(s) and/or inaction(s) of such third parties and/or its agents, and shall not be liable for any delay or loss of any kind, which occurs while a shipment is in the custody or control of a third party or the agent of a third party, all claims in connection with the Act of a third party shall be brought solely against such party and/or its agents; in connection with any such claim, the Company shall reasonably cooperate with the Customer, which shall be liable for any charges or costs incurred by the Company.

**5. Quotations Not Binding.** Quotations as to fees, rates of duty, freight charges, insurance premiums or other charges given by the Company to the Customer are for informational purposes only and are subject change without notice; no quotation shall be binding upon the Company unless the Company in writing agrees to undertake the handling or transportation of the shipment at a specific rate or amount set forth in the quotation and payment arrangements are agreed to between the Company and the Customer.

**6. Reliance On Information Furnished.** (a) Customer acknowledges that it is required to review all documents and declarations prepared and/or filed with U.S. Customs & Border Protection, other Government Agency and/or third parties, and will immediately advise the Company of any errors, discrepancies, incorrect statements, or omissions on any declaration or other submission filed on Customer's behalf; (b) In preparing and submitting customs entries, export declarations, applications, security filings, documentation and/or other required data, the Company relies on the correctness of all documentation, whether in written or electronic format, and all information furnished by Customer; Customer shall use reasonable care to ensure the correctness of all such information and shall indemnify and hold the Company harmless from any and all claims asserted and/or liability or losses suffered by reason of the Customer's failure to disclose information or any incorrect, incomplete or false statement by the Customer or its agent, representative or contractor upon which the Company reasonably relied. The Customer agrees that the Customer has an affirmative non-delegable duty to disclose any and all information required to import, export or enter the goods.

**7. Declaring Higher Value To Third Parties.** Third parties to whom the goods are entrusted may limit its liability for loss or damage; the Company will request excess valuation coverage only upon specific written instructions from the Customer, which must agree to pay any charges therefore; in the absence of written instructions or the refusal of the third party to agree to a higher declared value, at Company's discretion, the goods may be tendered to the third party, subject to the terms of the third party's limitations of liability and/or terms and conditions of service.

**8. Insurance.** Unless requested to do so in writing and confirmed to Customer in writing, Company is under no obligation to procure insurance on Customer's behalf; in all cases, Customer shall pay all premiums and costs in connection with procuring requested insurance.

**9. Disclaimers; Limitation of Liability.** (a) Except as specifically set forth herein, Company makes no express or implied warranties in connection with its services. (b) In connection with all services performed by the Company, Customer may obtain additional liability coverage, up to the actual or declared value of the shipment or transaction, by requesting such coverage and agreeing to make payment therefore, which request must be confirmed in writing by the Company prior to rendering services for the covered transaction(s). (c) In the absence of additional coverage under (b) above, the Company's liability shall be limited to the following: (i) where the claim arises from activities other than those relating to customs business, USD \$20.00 of the equivalent per kilo of goods lost, damaged or delay unless a higher value is declared by shipper. (ii) where the claim arises from activities relating to "Customs business," \$ 250.00 per entry or the amount of brokerage fees paid to Company for the entry, whichever is less; (d) In no event shall Company be liable or responsible for consequential, indirect, incidental, statutory or punitive damages, even if it has been put on notice of the possibility of such damages, or for the acts of third parties.

**10. Advancing Money.** All charges must be paid by Customer in advance unless the Company agrees in writing to extend credit to customer; the granting of credit to a Customer in connection with a particular transaction shall not be considered a waiver of this provision by the Company.

**11. Indemnification/Hold Harmless.** The Customer agrees to indemnify, defend, and hold the Company harmless from any claims and/or liability, fines, penalties and/or attorneys' fees arising from the importation or exportation of customers merchandise and/or any conduct of the Customer, including but not limited to the inaccuracy of entry, export or security data supplied by Customer or its agent or representative, which violates any Federal, State and/or other laws, and further agrees to indemnify and hold the Company harmless against any and all liability, loss, damages, costs, claims, penalties, fines and/or expenses, including but not limited to reasonable attorney's fees, which the Company may hereafter incur, suffer or be required to pay by reason of such claim(s); in the event that any claim, suit or proceeding is brought against the Company, it shall give notice in writing to the Customer by mail at its address on file with the Company.

**12. C.O.D. or Cash Collect Shipments.** Company shall use reasonable care regarding written instructions relating to "Cash/Collect on Deliver (C.O.D.)" shipments, bank drafts, cashier's and/or certified checks, letter(s) of credit and other similar payment documents and/or instructions regarding collection of monies but shall not have liability if the bank or consignee refuses to pay for the shipment.

**13. Costs of Collection.** In any dispute involving monies owed to Company, the Company shall be entitled to all costs of collection, including reasonable attorney's fees and interest at 18 % per annum or the highest rate allowed by law, whichever is less unless a lower amount is agreed to by Company.

**14. General Lien and Right To Sell Customer's Property.** (a) Company shall have a general and continuing lien on any and all property of Customer coming into Company's actual or constructive possession or control for monies owed to Company with regard to the shipment on which the lien is claimed, a prior shipment(s) and/or both; (b) Company shall provide written notice to Customer of its intent to exercise such lien, the exact amount of monies due and owing, as well as any on-going storage or other charges, Customer shall notify all parties having an interest in its shipment(s) of Company's rights and/or the exercise of such lien. (c) Unless, within thirty days of receiving notice of lien, Customer posts cash or letter of credit at sight, or, if the amount due is in dispute, an acceptable bond equal to 110% of the value of the total amount due, in favor of Company, guaranteeing payment of the monies owed, plus all storage charges accrued or to be accrued, Company shall have the right to sell such shipment(s) at public or private sale or auction and any net proceeds remaining thereafter shall be refunded to Customer.

**15. No Duty To Maintain Records For Customer.** Customer acknowledges that pursuant to Sections 508 and 509 of the Tariff Act, as amended, (19 USC §1508 and 1509) it has the duty and is solely liable for maintaining all records required under the Customs and/or other Laws and Regulations of the United States; unless otherwise agreed to in writing, the Company shall only keep such records that it is required to maintain by Statute(s) and/or Regulation(s), but not act as a "recordkeeper" or "recordkeeping agent" for Customer.

**16. Obtaining Binding Rulings, Filing Protests, etc.** Unless requested by Customer in writing and agreed to by Company in writing, Company shall be under no obligation to undertake any pre- or post Customs release action, including, but not limited to, obtaining binding rulings, advising of liquidations, filing of petition(s) and/or protests, etc.

**17. Preparation and Issuance of Bills of Lading.** Where Company prepares and/or issues a bill of lading, Company shall be under no obligation to specify thereon the number of pieces, packages and/or cartons etc., unless specifically requested to do so in writing by Customer or its agent and Customer agrees to pay for same, Company shall rely upon and use the cargo weight supplied by Customer.

**18. No Modification or Amendment Unless Written.** These terms and conditions of service may only be modified, altered or amended in writing signed by both Customer and Company; any attempt to unilaterally modify, alter or amend same shall be null and void.

**19. Compensation of Company.** The compensation of the Company for its services shall be included with and is in addition to the rates and charges of all carriers and other agencies selected by the Company to transport and deal with the goods and such compensation shall be exclusive of any brokerage, commissions, dividends, or other revenue received by the Company from carriers, insurers and others in connection with the shipment. On ocean exports, upon request, the Company shall provide a detailed breakout of the components of all charges assessed and a true copy of each pertinent document relating to these charges. In any referral for collection or action against the Customer for monies due the Company, upon recovery by the Company, the Customer shall pay the expenses of collection and/or litigation, including a reasonable attorney fee.

**20. Incorporation and Severability.** In the event the Company either issues a bill of lading in connection with the services performed hereunder or if a bill of lading is applicable by virtue of the Company acting in the capacity of an NVOCC, then all terms of the Company's bill of lading shall be incorporated herein, and, to the extent of a conflict between these Terms and Conditions of Service and said bill of lading, the bill of lading shall control. In the event any Paragraph(s) and/or portion(s) hereof is found to be invalid and/or unenforceable, then in such event the remainder hereof shall remain in full force and effect. Company's decision to waive any provision herein, either by conduct or otherwise, shall not be deemed to be a further or continuing waiver of such provision or to otherwise waive or invalidate any other provision herein.

**21. Governing Law; Consent to Jurisdiction and Venue.** These terms and conditions of service and the relationship of the parties shall be construed according to the federal law of the United States, and to the extent it does not conflict with same, to the laws of the State of New Jersey, without giving consideration to principals of conflict of law. Customer and Company (a) irrevocably consent to the jurisdiction of the United States District Court for the District of New Jersey and the State courts of New Jersey, (b) agree that any action relating to the services performed by Company, shall only be brought in said courts, (c) consent to the exercise of in personam jurisdiction by said courts over it, and (d) further agree that any action to enforce a judgment may be instituted in any jurisdiction.

# Exhibit “C”



10:06



11:05



< 108



Carlos

Tue, Feb 4 12:38 PM

Anis , we need please only 1 car  
to Al Khoms

What you send was load  
already

We switch 1 car to finish

We need another car to the  
second container

Tue, Feb 4 5:27 PM

Anis , bengahzi rate when up  
and the new Rate is \$2750.00  
increment Cma cgm , Msc and  
Happag Lloyd

So please increment rate to  
The customers

Wed, Feb 5 8:48 AM

Any updates on the release

In 30 minutes



iMessage



# Exhibit “D”

**CHASE** *for* BUSINESS

Printed from Chase for Business

---

| Wire date    | Status    | Wire to | Transaction number | Debit amount | Amount          |
|--------------|-----------|---------|--------------------|--------------|-----------------|
| Feb 20, 2020 | Completed | SCI     | 5242513831         | \$25,000.00  | \$25,000.00 USD |

---

Wire to SCI (...5658)

Wire from PERFBUS CHK (...6989)

Amount \$25,000.00 USD (U.S. Dollar)

Wire fee See analysis statement

Total wire cost \$25,000.00 USD (U.S. Dollar)

Wire date Feb 20, 2020

Status Completed

Status date Feb 20, 2020

Reference number 0220B1QGC08C003927

Transaction number 5242513831

Message to recipient Aeneas Exporting LLC Payment to the balance

Message to recipient bank Aeneas Exporting LLC Payment to the balance

Memo Aeneas Exporting LLC Payment to the balance

Submitted by Administrator

Submitted by date and timestamp 02/20/2020 09:12:56 AM ET

Last modified by Not Available

Modified by date and timestamp 02/20/2020 09:30:54 AM ET

---

# Exhibit “E”



A Houssein &lt;anis.houssein@gmail.com&gt;

---

**(no subject)**

12 messages

---

**Carlos Rodriguez** <carlos@csil.us>  
To: A Houssein <anis.houssein@gmail.com>

Thu, Feb 20, 2020 at 7:10 AM

Good morning , Anis

All your cargo is on Hold if we don't get a payment today of 75.000 thousand dollars , your company over heat my company and we don't follow your payments method . Is unacceptable.

We can received not even 1 car from today this is what is happening .

We paid inland transport every single week ,our transport hold my account today because we didn't paid last week .

I have to paid Cma Cgm for that crazy invoice and that money is not return until 30 -50 days , we work together and if you own more of \$150.000 thousand to Csi , you have to paid and leave people to keep going your method need a rich company with a fund of \$300.000 open just for you . I don't have that money ....

I know Mabie you and me is the end of our relation ship , but I don't have another option , if you paid you are on time to fix it and put all back ....

Sent from my iPhone

---

**A Houssein** <anis.houssein@gmail.com>  
To: Carlos Rodriguez <carlos@csil.us>

Thu, Feb 20, 2020 at 7:47 AM

Good morning Carlos,

Since you paid CMA. where are the releases? Clients want their vehicles.

[Quoted text hidden]

--

**Anis Houssein**  
**Aeneas Exporting LLC**

t: 773 814 8912

e: [anis.houssein@gmail.com](mailto:anis.houssein@gmail.com)

2511 E 2nd Street Apt.16 Bloomington, IN 47401

---

**Carlos Rodriguez** <carlos@csil.us>  
To: A Houssein <anis.houssein@gmail.com>

Thu, Feb 20, 2020 at 7:48 AM

If we don't get paid today is not released , sorry but we need the payment now .

Sent from my iPhone

On Feb 20, 2020, at 7:47 AM, A Houssein <[anis.houssein@gmail.com](mailto:anis.houssein@gmail.com)> wrote:

[Quoted text hidden]

---

**A Houssein** <anis.houssein@gmail.com>  
To: Carlos Rodriguez <carlos@csil.us>

Thu, Feb 20, 2020 at 7:50 AM

I paid you for the releases 4 weeks ago.

[Quoted text hidden]

---

**Carlos Rodriguez** <carlos@csil.us>  
To: A Houssein <anis.houssein@gmail.com>

Thu, Feb 20, 2020 at 7:54 AM

Just to be clear in this situation or we get paid today \$75.000 , I am not your financing company . All your cargo is in HOLD  
Not released and not more cars to my location .

Sent from my iPhone

On Feb 20, 2020, at 7:47 AM, A Houssein <anis.houssein@gmail.com> wrote:

[Quoted text hidden]

---

**Carlos Rodriguez** <carlos@csil.us>  
To: A Houssein <anis.houssein@gmail.com>

Thu, Feb 20, 2020 at 8:00 AM

Also we can't load any car until is paid  
You paid today you get the released and we load 15 containers .... today

Sent from my iPhone

On Feb 20, 2020, at 7:54 AM, Carlos Rodriguez <carlos@csil.us> wrote:

Just to be clear in this situation or we get paid today \$75.000 , I am not your financing company . All your cargo is in HOLD

[Quoted text hidden]

---

**Carlos Feliu** <carlos@csil.us>  
To: A Houssein <anis.houssein@gmail.com>

Thu, Feb 20, 2020 at 8:47 AM

Anis .please paid at lost 35 thousand today and I am very closed to get the financial for your company ,.... Cooperate .

***Thank you***



***Carlos Feliu***

***Carlo Shipping Inc***

***435 Division st***

***Elizabeth, NJ 07201***

***CEO***

***Tel: 908-351-5488***

**Fax: 908-351-5499**

**Cell: 908-267-5193**

[Quoted text hidden]

---

**A Houssein** <anis.houssein@gmail.com>  
To: Carlos Feliu <carlos@csil.us>

Thu, Feb 20, 2020 at 9:05 AM

Please confirm that I am going to get the release of 7 containers when I pay today \$25,000.00

[Quoted text hidden]

---

**Carlos Feliu** <carlos@csil.us>  
To: A Houssein <anis.houssein@gmail.com>

Thu, Feb 20, 2020 at 9:11 AM

Yes .,confirm

[Quoted text hidden]

---

**A Houssein** <anis.houssein@gmail.com>  
To: Carlos Feliu <carlos@csil.us>

Thu, Feb 20, 2020 at 9:11 AM

Great.

[Quoted text hidden]

---

**A Houssein** <anis.houssein@gmail.com>  
To: Carlos Feliu <carlos@csil.us>

Thu, Feb 20, 2020 at 9:13 AM

[Quoted text hidden]



**Schedule wire - chase.com.pdf**

73K

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**A Houssein** <anis.houssein@gmail.com>  
To: "marcela@csil.us" <marcela@csil.us>

Thu, Feb 20, 2020 at 10:53 AM

[Quoted text hidden]

# Exhibit “F”



**CHASE** *for* BUSINESS

Printed from Chase for Business

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| Wire date    | Status    | Wire to | Transaction number | Debit amount | Amount          |
|--------------|-----------|---------|--------------------|--------------|-----------------|
| Feb 21, 2020 | Completed | SCI     | 5242679296         | \$10,000.00  | \$10,000.00 USD |

---

Wire to SCI (...5658)

Wire from PERFBUS CHK (...6989)

Amount \$10,000.00 USD (U.S. Dollar)

Wire fee See analysis statement

Total wire cost \$10,000.00 USD (U.S. Dollar)

Wire date Feb 21, 2020

Status Completed

Status date Feb 21, 2020

Reference number 0221B1QGC07C018323

Transaction number 5242679296

Message to recipient Aeneas Exporting LLC

Message to recipient bank Aeneas Exporting LLC

Memo Aeneas Exporting LLC

Submitted by Administrator

Submitted by date and timestamp 02/21/2020 03:24:58 PM ET

Last modified by Not Available

Modified by date and timestamp 02/21/2020 03:40:39 PM ET

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**CHASE** *for* BUSINESS

Printed from Chase for Business

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| Wire date    | Status    | Wire to | Transaction number | Debit amount | Amount          |
|--------------|-----------|---------|--------------------|--------------|-----------------|
| Feb 26, 2020 | Completed | SCI     | 5242957833         | \$15,000.00  | \$15,000.00 USD |

---

Wire to SCI (...5658)

Wire from PERFBUS CHK (...6989)

Amount \$15,000.00 USD (U.S. Dollar)

Wire fee See analysis statement

Total wire cost \$15,000.00 USD (U.S. Dollar)

Wire date Feb 26, 2020

Status Completed

Status date Feb 26, 2020

Reference number 0226B1QGC04C005094

Transaction number 5242957833

Message to recipient Aeneas Exporting LLC payment for 8 containers

Message to recipient bank Aeneas Exporting LLC payment for 8 containers

Memo None

Submitted by Administrator

Submitted by date and timestamp 02/26/2020 09:00:19 AM ET

Last modified by Not Available

Modified by date and timestamp 02/26/2020 09:21:01 AM ET

---

**CHASE** *for* BUSINESS

Printed from Chase for Business

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| Wire date    | Status    | Wire to | Transaction number | Debit amount | Amount          |
|--------------|-----------|---------|--------------------|--------------|-----------------|
| Jan 28, 2020 | Completed | SCI     | 5240408114         | \$25,000.00  | \$25,000.00 USD |

---

Wire to SCI (...5658)

Wire from PERFBUS CHK (...6989)

Amount \$25,000.00 USD (U.S. Dollar)

Wire fee See analysis statement

Total wire cost \$25,000.00 USD (U.S. Dollar)

Wire date Jan 28, 2020

Status Completed

Status date Jan 28, 2020

Reference number 0128B1QGC07C006215

Transaction number 5240408114

Message to recipient Aeneas Exporting LLC payment

Message to recipient bank Aeneas Exporting LLC payment

Memo Aeneas Exporting's payment

Submitted by Administrator

Submitted by date and timestamp 01/28/2020 09:02:55 AM ET

Last modified by Not Available

Modified by date and timestamp 01/28/2020 09:21:09 AM ET

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# Exhibit “G”



A Houssein &lt;anis.houssein@gmail.com&gt;

---

**Total of \$50,000.00**

6 messages

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**A Houssein** <anis.houssein@gmail.com>

Wed, Feb 26, 2020 at 9:21 AM

To: "marcela@csil.us" &lt;marcela@csil.us&gt;, Carlos Rodriguez &lt;carlos@csil.us&gt;, Henia Graham &lt;henia@csil.us&gt;

Dear Marcela,

I send total \$50,000.00 by today \$15,000.00. Please apply the payment on the 3 containers that we already got the release for. After that, please get me the release for container number 4. It has already arrived. then, please get me the release for the 16 containers. They will arrive in two weeks. Any delay on that will result in a storage of \$20.00 daily for each container which will mean a loss for me. The total of cost of the following containers will be \$50,700.00. \$700.00 will be wired in the next payment.

1. TCNU5491659
2. TCNU1242724
3. APHU6636362

4. SEGU6051750

Please apply the rest of the payment on the following:

1. TCNU2838240
2. TGHU9498822
3. CMAU4210102
4. TCLU5317110
5. CMAU4307807
6. CMAU4711125
7. TGHU9536368
8. CMAU7435972
9. CMAU6417399
10. CMAU7244805
11. CMAU4187764
12. APHU6588670
13. GESU4907925
14. CMAU5911180
15. TCNU2393601
16. CMAU7283268

Best regards,

--

**Anis Houssein**  
**Aeneas Exporting LLC**

---

t: 773 814 8912

e: anis.houssein@gmail.com

2511 E 2nd Street Apt.16 Bloomington, IN 47401

**CSI - Wire \$15,000.00.pdf**

167K

Wed, Feb 26, 2020 at 10:07 AM

**Marcela Huergo** <marcela@csil.us>

To: A Houssein &lt;anis.houssein@gmail.com&gt;

Cc: Carlos Rodriguez &lt;carlos@csil.us&gt;, Henia Graham &lt;henia@csil.us&gt;

Hello Anis,

Received. I will look into all of this and get back to you. Thanks for your payment.

Best,

Marcela Huergo

**CSI Logistics**

435 Division St.

Elizabeth, NJ 07201

Tel: 908.351.5488

Fax: 908.351.5499

www.csil.us

[Quoted text hidden]

**Marcela Huergo** <marcela@csil.us>

Thu, Feb 27, 2020 at 9:11 AM

To: A Houssein &lt;anis.houssein@gmail.com&gt;

Cc: Carlos Rodriguez &lt;carlos@csil.us&gt;, Henia Graham &lt;henia@csil.us&gt;

Hi Anis,

I applied your three wires to pay for the containers in the same order as your email below. #15 still would have an open balance of \$1,050 and #16 would still remain unpaid. Please let me know if you have any questions.

Following are the details.

***Aeneas Exporting LLC*****WT**

| <b>Date</b> | <b>Amount</b> | <b>Applied</b> | <b>Ref</b>   | <b>Container #</b> | <b>Balance</b> |
|-------------|---------------|----------------|--------------|--------------------|----------------|
| 2/20/2020   | \$25,000      | -2550          | CSI-19-01051 | TCNU5491659        | \$22,450       |
|             |               | -2550          | CSI-19-01061 | TCNU1242724        | \$19,900       |
|             |               | -2550          | CSI-19-01060 | APHU6636362        | \$17,350       |
|             |               | -2550          | CSI-19-01044 | SEGU6051750        | \$14,800       |
|             |               | -2550          | CSI-19-01056 | TCNU2838240        | \$12,250       |
|             |               | -2550          | CSI-19-01062 | TGHU9498822        | \$9,700        |
|             |               | -2750          | CSI-20-00016 | CMAU4210102        | \$6,950        |
|             |               | -2750          | CSI-20-00020 | TCLU5317110        | \$4,200        |
|             |               | -2750          | CSI-20-00023 | CMAU4307807        | \$1,450        |
|             |               | -1450          | CSI-20-00017 | CMAU4711125        | \$0            |
| 2/20/2020   | \$10,000      | -1300          | CSI-20-00017 | CMAU4711125        | \$8,700        |
|             |               | -2750          | CSI-20-00015 | TGHU9536368        | \$5,950        |
|             |               | -2750          | CSI-20-00022 | CMAU7435972        | \$3,200        |

|                                |       |
|--------------------------------|-------|
| -2750 CSI-20-00025 CMAU6417399 | \$450 |
| -450 CSI-20-00037 CMAU7244805  | \$0   |

|           |          |                                |          |
|-----------|----------|--------------------------------|----------|
| 2/26/2020 | \$15,000 | -2300 CSI-20-00037 CMAU7244805 | \$12,700 |
|           |          | -2750 CSI-20-00051 CMAU4187764 | \$9,950  |
|           |          | -2750 CSI-20-00046 APHU6588670 | \$7,200  |
|           |          | -2750 CSI-20-00058 GESU4907925 | \$4,450  |
|           |          | -2750 CSI-20-00057 CMAU5911180 | \$1,700  |
|           |          | -1700 CSI-20-00048 TCNU2393601 | \$0      |

|                    |                                      |
|--------------------|--------------------------------------|
| <b>Balance Due</b> | <b>1050 CSI-20-00048 Balance</b>     |
|                    | <b>2750 CSI-20-00060 CMAU7283268</b> |

Marcela Huergo



CSI Logistics  
435 Division St.  
Elizabeth, NJ 07201  
Tel: 908.351.5488  
Fax: 908.351.5499  
www.csil.us

[Quoted text hidden]

**A Houssein** <anis.houssein@gmail.com>  
To: Marcela Huergo <marcela@csil.us>  
Cc: Carlos Rodriguez <carlos@csil.us>, Henia Graham <henia@csil.us>

Thu, Feb 27, 2020 at 9:19 AM

Noted with regards!

[Quoted text hidden]

**A Houssein** <anis.houssein@gmail.com>  
To: Marcela Huergo <marcela@csil.us>, Carlos Rodriguez <carlos@csil.us>

Thu, Apr 23, 2020 at 12:46 PM

See this, Carlos!

[Quoted text hidden]

--

**Best regards,**

**Anis Houssein**  
**Aeneas Exporting LLC**

Shipping: 773 814 8912  
Logistics: 812 668 0169  
Docs: 812 329 4773



Fax: 812 954 0382

e: [shipping.manager@aeneasexporting.com](mailto:shipping.manager@aeneasexporting.com)  
e: [logistics.manager@aeneasexporting.com](mailto:logistics.manager@aeneasexporting.com)  
e: [docs.manager@aeneasexporting.com](mailto:docs.manager@aeneasexporting.com)  
e: [anis.houssein@gmail.com](mailto:anis.houssein@gmail.com)

Website: <https://www.aeneasexporting.net/>

2511 E 2nd Street Apt.16 Bloomington, IN 47401



---

**A Houssein** <[anis.houssein@gmail.com](mailto:anis.houssein@gmail.com)>

Tue, May 5, 2020 at 3:22 PM

To: Marcela Huergo <[marcela@csil.us](mailto:marcela@csil.us)>, Carlos Rodriguez <[carlos@csil.us](mailto:carlos@csil.us)>

Dear Carlos,

This is the email between me and you and your accountant, Marcela. She applied the payment to the current CMA's containers. Please be informed that you are responsible for all the changes that will occur as a result of the delay in sending the releases. We have not received the release for 6 containers with CMA. We will send you the changes that occur with CMA for the above containers. Thank you! Stay Safe!

[Quoted text hidden]



# Exhibit “H”



A Houssein &lt;anis.houssein@gmail.com&gt;

---

**(no subject)**

1 message

**Carlos Feliu** <carlos@csil.us>

Thu, Mar 5, 2020 at 9:52 AM

To: A Houssein &lt;anis.houssein@gmail.com&gt;

Cc: Marcela Huergo &lt;marcela@csil.us&gt;

Dear Anis

For the last 7 days we never get any car from you ,so looks like you move over and our buss is over.if this is the case let me know ,?

I need another payment of 25 K today to make the released .you have the opportunity to sign the contract and we can get 250.000 credit to paid in 40 days

And you avoid to sign ,so now you have to paid .

***Thank you******Carlos Feliu******Carlo Shipping Inc****435 Division st**Elizabeth, NJ 07201****CEO******Tel: 908-351-5488******Fax: 908-351-5499******Cell: 908-267-5193***



A Houssein &lt;anis.houssein@gmail.com&gt;

---

**(no subject)**

3 messages

---

**Carlos Rodriguez** <carlos@csil.us>  
To: A Houssein <anis.houssein@gmail.com>

Mon, Mar 9, 2020 at 9:05 PM

You stop making any delivery to Csi , ? I

Sent from my iPhone

---

**A Houssein** <anis.houssein@gmail.com>  
To: Carlos Rodriguez <carlos@csil.us>, "marcela@csil.us" <marcela@csil.us>

Mon, Mar 9, 2020 at 9:11 PM

Because I cannot pay you before the clients pay me. They pay on the arrival. Therefore, I had to go forward.

[Quoted text hidden]

--

**Anis Houssein**  
**Aeneas Exporting LLC**

---

t: 773 814 8912

e: [anis.houssein@gmail.com](mailto:anis.houssein@gmail.com)

2511 E 2nd Street Apt.16 Bloomington, IN 47401

---

**Carlos Feliu** <carlos@csil.us>  
To: A Houssein <anis.houssein@gmail.com>, marcela@csil.us

Tue, Mar 10, 2020 at 7:27 AM

So you stop the buss ,ok now we are going to charge storage for any car after 21 days free .\$.25.00 x day /.and also full payment of the balance /

Your customers take advanced on this Buss and this is not right ,you ship and ON BOARD ,next day paid.

**Thank you**



**Carlos Feliu**

**Carlo Shipping Inc**

**435 Division st**

**Elizabeth, NJ 07201**

**CEO**

**Tel: 908-351-5488**

5/20/2020

Gmail - (no subject)

***Fax: 908-351-5499***

***Cell: 908-267-5193***

[Quoted text hidden]

# Exhibit “I”

Ok let me know

Tue, Mar 10, 7:39 AM

Dear Anis

You stop making delivery's to us for the last 10 days , I'll consider this that our buss is over you still have cars in my location and a debit of \$115.000 thousand , because you didn't sign the contract and move back , I have no option in to collect all my balance and charge you for storage on the cars of \$25.00 x car x day ...your condition of payment when the container arrive works only if you sign for the financial company and until

# Exhibit “J”

**CHASE** *for* BUSINESS

Printed from Chase for Business

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| Wire date    | Status    | Wire to | Transaction number | Debit amount | Amount         |
|--------------|-----------|---------|--------------------|--------------|----------------|
| Mar 19, 2020 | Completed | SCI     | 5245116838         | \$5,800.00   | \$5,800.00 USD |

---

Wire to SCI (...9341)

Wire from PERFBUS CHK (...6989)

Amount \$5,800.00 USD (U.S. Dollar)

Wire fee See analysis statement

Total wire cost \$5,800.00 USD (U.S. Dollar)

Wire date Mar 19, 2020

Status Completed

Status date Mar 19, 2020

Reference number 0319B1QGC04C011736

Transaction number 5245116838

Message to recipient Aeneas Exporting LLC payment for 2 containers and two titles

Message to recipient bank Aeneas Exporting LLC payment for 2 containers and two titles

Memo None

Submitted by Administrator

Submitted by date and timestamp 03/19/2020 02:36:41 PM ET

Last modified by Not Available

Modified by date and timestamp 03/19/2020 03:51:03 PM ET

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# Exhibit “K”

**CHASE** *for* BUSINESS

Printed from Chase for Business

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| Wire date    | Status    | Wire to | Transaction number | Debit amount | Amount          |
|--------------|-----------|---------|--------------------|--------------|-----------------|
| Apr 15, 2020 | Completed | SCI     | 5247352564         | \$80,000.00  | \$80,000.00 USD |

---

Wire to SCI (...9341)

Wire from PERFBUS CHK (...6989)

Amount \$80,000.00 USD (U.S. Dollar)

Wire fee See analysis statement

Total wire cost \$80,000.00 USD (U.S. Dollar)

Wire date Apr 15, 2020

Status Completed

Status date Apr 15, 2020

Reference number 0415B1QGC05C001899

Transaction number 5247352564

Message to recipient Aeneas Exporting LLC payment for 24 containers

Message to recipient bank Aeneas Exporting LLC payment for 24 containers

Memo None

Submitted by Administrator

Submitted by date and timestamp 04/15/2020 07:50:12 AM ET

Last modified by Not Available

Modified by date and timestamp 04/15/2020 08:11:37 AM ET

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**CHASE** *for* BUSINESS

Printed from Chase for Business

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| Wire date   | Status    | Wire to | Transaction number | Debit amount | Amount          |
|-------------|-----------|---------|--------------------|--------------|-----------------|
| May 4, 2020 | Completed | SCI     | 5249005018         | \$41,000.00  | \$41,000.00 USD |

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Wire to SCI (...9341)

Wire from PERFBUS CHK (...6989)

Amount \$41,000.00 USD (U.S. Dollar)

Wire fee See analysis statement

Total wire cost \$41,000.00 USD (U.S. Dollar)

Wire date May 4, 2020

Status Completed

Status date May 4, 2020

Reference number 0504B1QGC04C002348

Transaction number 5249005018

Message to recipient Aeneas Exporting LLC payment for 17 containers

Message to recipient bank Aeneas Exporting LLC payment for 17 containers

Memo None

Submitted by Administrator

Submitted by date and timestamp 05/03/2020 01:09:02 PM ET

Last modified by Not Available

Modified by date and timestamp 05/04/2020 08:13:23 AM ET

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# Exhibit “L”

## Payment Info

Bill of Lading: NAM3748108

Customer: 0006142104/001

INVOICE  
LYIM0289408

Date: 09-MAR-2020

Invoice To:

ALREDA CO FOR IMPORTING VEHICLES  
219 JAMAL ABD ELNASSER ST  
BENGHAZI/  
LIBYA

Payable to: LIBYAN WAVES FOR SHIPPING AG SERV

TEL: FAX:

## Contact Info

Invoiced By: Asma ALRASHDI

Call Date: 11 FEB 2020

Voyage: 0IT5ON1MA Local Voyage Ref: -

Vessel: CONTSHIP SUN

Place of Receipt: -

Discharge Port: BINGAZI

Load Port: NEW YORK, NY

Place of Delivery: -

## (C) Equip detention&amp; demur. import

Total billable days: 8 Calendar

Container Number: APHU6636362 Size/Type: 40HC 10Free Calendar Days

Start Event Data: 17-FEB-20 - Discharged Full - BINGAZI - BINGAZI TERMINAL

Stop Event Data: 05-MAR-20 - Gate in Empty - BINGAZI - GENERIC DEPOT

| From Date | To Date   | Tax | Days | Type     | Rate | Inv. Currency | Inv. Amount |
|-----------|-----------|-----|------|----------|------|---------------|-------------|
| 27-FEB-20 | 05-MAR-20 | C2  | 8    | Calendar | 8.00 | USD           | 64.00       |

Currency Charge Totals  
USD 64.00

VAT applied as indicated on charges

Total Excluding Tax

C2 Auto Liquidation - Article 196 Directive 2006/112/CE VAT due by the client if no exemption applies - Article 283-2 du  
CGI - TVA due par le preneur. Services acquired by the client for its business activity - Article 44 Directive  
2006/112/CE

Total VAT

Total Including Tax

(C) For and on behalf of CMA - CGM  
4 QUAI D'ARENC  
13002 MARSEILLE-FRANCE  
FR72562024422

Carrier No. LYCMA0085032

Total Amount Due:

64.00

Payable by 09-MAR-20

Payment before delivery of Bill Of Lading (Export) or containers (Import)

Our invoices are payable in full to CMA CGM by the indicated due date, without an  
deduction, including for payments made in advance. Penalties for late payments at  
0.75% per month pro rata

Late BL collection fee: RM100 &gt;7days, RM200 &gt;14days, RM300 &gt;21days.



281

ORIG

Payment Info

Bill of Lading: NAM3748062

Customer: 0006142104/001

INVOICE  
LYIM0289371

Date: 09-MAR-2020

Invoice To:

ALREDA CO FOR IMPORTING VEHICLES  
219 JAMAL ABD ELNASSER ST  
BENGHAZI/  
LIBYA

Payable to:

LIBYAN WAVES FOR SHIPPING AG SERV  
TEL: FAX:

Contact Info

Invoiced By: Asma ALRASHDI

Voyage: 0IT5ON1MA

Local Voyage Ref: -

Vessel: CONTSHIP SUN

Call Date: 11 FEB 20

Place of Receipt: -

Discharge Port: BINGAZI

Load Port: NEW YORK, NY

Place of Delivery: -

(C) Equip detention & demur. import

Total billable days: 10 Calendar

Container Number: TCNU5491659 Size/Type: 40HC 10Free Calendar Days

Start Event Data: 17-FEB-20 - Discharged Full - BINGAZI - BINGAZI TERMINAL

Stop Event Data: 07-MAR-20 - Gate in Empty - BINGAZI - GENERIC DEPOT

| From Date | To Date   | Tax | Days | Type     | Rate | Inv. Currency | Inv. Amount |
|-----------|-----------|-----|------|----------|------|---------------|-------------|
| 27-FEB-20 | 07-MAR-20 | C2  | 10   | Calendar | 8.00 | USD           | 80.00       |

Currency Charge Totals

USD 80.00

VAT applied as indicated on charges

Total Excluding Tax

C2 Auto Liquidation - Article 196 Directive 2006/112/CE VAT due by the client if no exemption applies - Article 283-2 du CGI - TVA due par le preneur. Services acquired by the client for its business activity - Article 44 Directive 2006/112/CE

Total VAT

Total Including Tax

(C) For and on behalf of CMA - CGM  
4 QUAI D'ARENC  
13002 MARSEILLE-FRANCE  
FR72562024422

Carrier No. LYCMA0085018

Total Amount Due:

80.0

Payable by 09-MAR-20

Payment before delivery of Bill Of Lading (Export) or containers (Import)

Our invoices are payable in full to CMA CGM by the indicated due date, without deduction, including for payments made in advance. Penalties for late payments 0.75% per month pro rata

Late BL collection fee: RM100 > 7 days



## Payment Info

Bill of Lading: NAM3747486

Customer: 0006142104/001

INVOICE  
LYIMO28936

ORIGINAL

Payable to: LIBYAN WAVES FOR SHIPPING AD SERV  
TEL: FAX:

Date: 09-MAR-2020

Invoice No:

ALREDA CO FOR IMPORTING VEHICLES  
219 JAMAL ABD ELNASSER ST  
BENGHAZI  
LIBYA

## Contact Info

Invoiced By: Asma ALRASHDI

Call Date: 11 FEB 2020

Voyage: 0IT5ON1MA

Local Voyage Ref: -

Vessel: CONTSHIP SUN

Place of Receipt: -

Discharge Port: BINGAZI

Load Port: NEW YORK, NY

Place of Delivery: -

## (C) Equip detention&amp; demur. import

Total billable days: 10 Calendar Days

Container Number: TCNU1242724

Size/Type: 40HC 10Free Calendar Days

Start Event Data: 17-FEB-20 - Discharged Full - BINGAZI - BINGAZI TERMINAL

Stop Event Data: 07-MAR-20 - Gate in Empty - BINGAZI - GENERIC DEPOT

| From Date | To Date   | Tax | Days | Type     | Rate | Inv. Currency | Inv. Amount |
|-----------|-----------|-----|------|----------|------|---------------|-------------|
| 27-FEB-20 | 07-MAR-20 | C2  | 10   | Calendar | 8.00 | USD           | 80.00       |

Currency Charge Totals

USD 80.00

VAT applied as indicated on charges

Total Excluding Tax

C2: Auto Liquidation - Article 196 Directive 2006/112/CE VAT due by the client if no exemption applies - Article 283-2 du  
CGI - TVA due par le preneur. Services acquired by the client for its business activity - Article 44 Directive  
2006/112/CE

Total VAT

Total Including Tax

(C) For and on behalf of CMA - CGM  
4 QUAI D'ARENC  
13002 MARSEILLE-FRANCE  
FR72502024422

Carrier No. LYCMA0085016

Total Amount Due:

80.00

Payable by 09-MAR-20

Payment before delivery of Bill Of Lading (Export) or containers (Import)

Our invoices are payable in full to CMA CGM by the indicated due date, without any deduction, including for payments made in advance. Penalties for late payments are 0.75% per month pro rata

Late BL collection fee: RM100 &gt;7days, RM200 &gt;14days, RM300 &gt;21days.